



**EACHRights**

The East African Centre for Human Rights

# **POSITION PAPER ON SPONSORED SCHOOLS IN KENYA**

**2021**

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**This paper addresses a number of core issues related to ownership, performance, and management of sponsored schools in Kenya, under the purview of the policy, legal, institutional and constitutional frameworks governing these institutions. The fulcrum is President Uhuru Kenyatta's directive issued on 13th November, 2018 on restoration of ownership and management of sponsored schools to their benefactors, who are quintessentially non-state actors.**

## About EACHRights

The East African Centre for Human Rights (EACHRights) is a non-partisan regional non-governmental organization that seeks to undertake programmes that promote, protect, and enhance the realization of Economic, Social, and Cultural Rights (ECOSOC Rights) in Kenya, Uganda and Tanzania for vulnerable and marginalized groups. The organization specializes in the Right to Education; Child Protection and the Right to Health for children.

EACHRights' Education Support Programme advocates for the state to fulfil its obligation to provide free and basic primary education in line with its obligations as outlined in international and regional treaties and national laws. To achieve this goal, the Right to Education in Kenya and East Africa Project has 3 main objectives:

- Improved enforcement of education policies for improved access, availability, and quality education.
- Enhanced accountability (including social accountability) for the right to education.
- Improved school governance (leadership and management)



*Children from Mombasa County participate during a group exercise on Child Rights.*

## Foreword

“  
***The paper forms a basis for a national engagement that would see reforms in policy and legislations that could improve and incorporate all actors in education for the achievement of SDG4 and other national aspirations***  
”

The provision of basic education and training for all Kenyans is the primary responsibility of the state. Kenya has had a historical journey in education reforms and characterized by diverse actors, collaborators, and providers of education services. The missionary movement played a pivotal role in initiation of schools, which were later handed over to the state as public schools while others still under the management of religious institutions. The challenge of land tenure system; community land, public land and private land has continued to hound Kenyans and now the scourge has taken root into the public land where schools are being ousted out of the very land donated by the community for the public good of having a school for the community. Greed and corruption have continued to prevail in our society, causing people to see the lack of legal documentation of public school land as a loophole and opportunity to grab school land, displacing the school for selfish interest to the detriment of the best interest of the child.

This paper comes at a time when there are dozens of challenges in Kenya touching on land ownership, control, and management of sponsored schools amid various presidential pronouncements that contradicts the existing policy framework, thus making it impossible to implement necessary reforms in the school management and administration.

EACHRights therefore, through this position paper, envisions to both trigger and to contribute to a healthy discussion involving relevant stakeholders from the MoE and private sector, especially owner of sponsored schools to a point of convergence for the best interest of the child in promoting and protecting right to education. The paper forms a basis for a national engagement that would see reforms in policy and legislations that could improve and incorporate all actors in education for the achievement of SDG4 and other national aspirations for ensuring that no child is left behind in education. Considering that the larger issue of the need to protect school land and the play out of public and private partnerships in education is not a concern only in Kenya but a regional problem, it is my sincere hope that this paper will form the basis for change in this aspect regionally.



**Dr. Judith Oloo,**  
**Chief Executive Officer,**  
**EACHRights**

## Preface

As a child centred organization, EACHRights has undertaken this work to meaningfully contribute to the understanding the Sponsors in education provision have played since independence and how such has policy implications in the ensuring the provision of quality education to all as an empowering tool and an entitlement.

It is therefore our hope that this paper will provide the stakeholders in education sector including the ministry of Education to review and or reconsider their regulation guidelines to align them accordingly with the National policies as well as acknowledge the roles being played by the sponsors and sponsored schools in Kenya, religious institutions that form a bulk ratio of sponsors and owners of sponsored schools to identify their place and roles in contributing to the education sector in Kenya and other education stakeholders to positively engage in education reforms particularly seeking policy alignment that addresses the issue of school ownership, school land titling and other aspects that affects access to and enjoyment of right to education.

I believe that this paper opens an opportunity of engagement among education stakeholders on exploring other aspects relating to right to education in Kenya with an aim of strengthening public education as a public good.

**Johnstone Shisanya**  
Education Support Program,  
East Africa Centre for Human Rights

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***It is therefore our hope that this paper will provide the stakeholders in education sector including the ministry of Education to review and or reconsider their regulation guidelines to align them accordingly with the National policies as well as acknowledge the roles being played by the sponsors and sponsored schools in Kenya,***

”

## Acknowledgments

On behalf of EACHRights, as the consultant who was tasked to develop this position paper, I would like to thank Edwin Birech (Coordinator, Shule Yangu Alliance) and Erick Kinaga (Former Coordinator, Shule Yangu Alliance) for their critical review of this paper and worthy contributions. Special mention is also made of all those who participated in the dissemination and validation workshops, that added value to this work.

“  
*I acknowledge  
the various staff  
members of  
East Africa Centre  
for Human Rights  
who meaningfully  
supported this  
process from  
inception to the end.*  
”

Further, I acknowledge the various staff members of East Africa Centre for Human Rights who meaningfully supported this process from inception to the end. They include Claude Kandem (Programme Assistant), Margaret Wawira (former Program Manager, ESP) and Johnstone Shisanya (Program Manager, ESP). Their technical input is appreciated.

Finally, I would like to acknowledge Dr. Judith Oloo (Chief Executive Officer, EACHRights) for providing guidance in the overall direction of this work.



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### Abbreviations and Acronyms

|                   |                                                              |
|-------------------|--------------------------------------------------------------|
| <b>APBET</b>      | <b>Alternative Provision of Basic Education and Training</b> |
| <b>EACHRights</b> | <b>East Africa Centre for Human Rights</b>                   |
| <b>GOK</b>        | <b>Government of Kenya</b>                                   |
| <b>LCPS</b>       | <b>Low Cost Private Schools</b>                              |
| <b>MOEST</b>      | <b>Ministry of Education, Science and Technology</b>         |
| <b>IMF</b>        | <b>International Monetary Fund</b>                           |
| <b>SAP</b>        | <b>Structural Adjustment Programs</b>                        |
| <b>TSC</b>        | <b>Teachers' Service Commission</b>                          |

## Executive Summary

This position paper explores a number of critical issues related to sponsored schools in Kenya, against the backdrop of His Excellency the President's remarks on Sponsored Schools issued on 13th November 2018, where he spoke about the management and ownership of the said schools in general, and then issued certain orders. In particular, the President's orders touched on the following areas:

1. Restoration of Sponsored schools to religious authorities
2. Ownership and Management of Sponsored Schools in Kenya

Other issues related to the above which are explored by this paper include the following:

1. Land Registration Regime related to Sponsored Schools in Kenya. Specifically, land titling aspects of sponsored schools and the risks involved including the long-term effects of having the title in the sponsor's name and schools losing title to sponsors
2. Impact of Sponsored Schools on Discipline of Learners, and Access to Quality Education

The findings of this study led to the following conclusions:

1. The president's directive on ownership and management of sponsored schools in Kenya – Constitutionally, all public directives by the president ought to be in writing, under the seal of his office, for them to have force of law. Even if this requirement was complied with in this case, the directive ought to be consistent with the other provisions in the constitution, and existing laws, including Acts of Parliament. As such, the president's directive was not legal since it contradicts provisions in the Basic Education Act (2013) on ownership of public schools.
2. The ownership and management of sponsored schools, by their respective sponsors in Kenya has been on a steady decline since independence. This issue has to be seen through the lens of interminable tension between church and state, since the pre-independence days. Clearly, there has been a deliberate and consistent effort by successive governments, to scale down the clout of sponsors and limit them to spiritual guidance and counselling, besides making financial contributions to the school. The role of sponsors in school management committees and boards has been whittled down and their oversight on head-teachers is reduced. The 2010 Constitution cited Kenya as a secular state, further curtailing the encroachment of religion on the state. Creation of constitutional commissions like the Teachers Service Commission (TSC) further strengthened the teacher management regime and eliminated the influence sponsors used to have in appointment of head-teachers to their schools. This has also had the effect of repurposing the accountability framework at the school level, where previously, head-teachers had to kowtow to the dictates of the sponsor-institution.

“

*Sponsored schools continue to be at the forefront of enforcing a stricter version of religious-driven values amongst students. While there is greater compliance in primary schools, the picture in secondary schools has been different, with flare-ups of student unrest across the decades*

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3. The ownership of the land upon which sponsored schools sit – The constitutional categorisation of land only as public, private or community means that there is no provision of co-ownership between the government and the sponsors. A government school cannot operate on private land. As long as this leverage remains in the hands of non-state actors like sponsors, the risks to universal access to education will remain. At some point, a decision must be made to shift the school land to the government and title it appropriately, or for the sponsors to convert these schools into private enterprises. Either way, the overarching principle should be to safeguard the right to education for the Kenyan children.

As such, the thinking should tilt towards government acquisition of these lands and necessary compensation to be done to the sponsors, to settle ownership once and for all. Management can be shared between the government and the sponsor institutions.

4. The trifecta between faith-based education, discipline amongst students and academic excellence in sponsored schools. Here, sponsored schools continue to be at the forefront of enforcing a stricter version of religious-driven values amongst students. While there is greater compliance in primary schools, the picture in secondary schools has been different, with flare-ups of student unrest across the decades, some leading to violent outcomes including destruction of property and loss of lives. In all these, we see sponsored schools playing a leading role in imparting values but there is no evidence that there exists a clear correlation between sponsored schools having higher discipline on the one hand and posting excellent results in academia on the other hand. Ultimately, many factors account for discipline (including parental upbringing) and academic performance (including quality of teaching and instruction).

Drawing from the foregoing findings, there are a number of action points that need to be taken by different actors, going forward, to systematize operations of sponsored schools in Kenya. These proposals are contained in an Advocacy Plan, attached as an appendix at Annex 1

## Prologue

Between 1963 and 2010, Kenya's constitutional and policy architecture bred an imperial presidency. The state/government headed by the president was more powerful than institutions of restraint, which are required to provide the much needed *checks-and-balance*, to constrain excesses on the part of the president.

Two notable examples are in the **land administration regime and roadside declarations** by the president.

The Registered Land Act (1963)<sup>1</sup> gave unbridled powers to the president to allocate land to whomsoever, without any due process. The use of that leverage was purely whimsical. The only other person who enjoyed this leeway was the Commissioner of Lands, who was an appointee of the president. As a result, both Jomo Kenyatta and Daniel Moi allocated large amounts of public land to their cronies, at the expense of the public interest. Many court cases ensued from these allocations, some of which persist to date. The Report of the **Commission of Inquiry into the Illegal/Irregular Allocation of Public Land (the Ndung'u Commission<sup>2</sup>)**, released in December 2004, cited churches as some of the major beneficiaries of the wanton allocation of public land by the president to different individuals and institutions.

Secondly, presidential declarations in the public sphere were a prominent feature of both Jomo Kenyatta and Daniel Moi administrations<sup>3</sup>. Operating under near-absolute powers, these two presidents were famed for making public declarations, which had far-reaching policy ramifications, although they were not backed by law. However, since all state institutions were weak(ened) and many state/public officers irresolute, the president's word became law. Adjustments had to be made forthwith to actualize the president's pronouncements.

This position paper addresses themes that dovetail into the two aforementioned issues quite well. Part of the discussion will draw a comparative assessment of the past and the present, with the 2010 constitution and its subsidiary pieces of legislation being the dividing river of two rather different epochs.

The relics of the past still find expression in the new era, as leaders who have not fully embraced the current constitutional climate, give directives which turn out to be a typology of the biblical '*old wine in new wineskins*'.

The strengthening of the institutions of restraint in the 2010 Constitution yielded a significant curtailment of the powers of the president, by increasing the degree of accountability on the holder of that office and expanding the role and responsibility of the private citizen, by providing multiple channels of advocacy on issues of grievance. As such, a number of areas of advocacy shall be highlighted at the end of this paper, for consideration by the East African Centre for Human Rights (EACHRights<sup>4</sup>) and Shule Yangu Campaign Alliance<sup>5</sup>.

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<sup>1</sup> Registered Land Act (1963) <http://kenyalaw.org/kl/fileadmin/pdfdownloads/Acts/RegisteredLandActCap300.pdf>

<sup>2</sup> Report of the Commission of Inquiry into the Illegal/Irregular Allocation of Public Land [http://kenyalaw.org/kl/fileadmin/CommissionReports/A\\_Report\\_of\\_the\\_Land\\_Commission\\_of\\_Inquiry\\_into\\_the\\_Illegal\\_or\\_Irregular\\_Allocation\\_of\\_Land\\_2004.pdf](http://kenyalaw.org/kl/fileadmin/CommissionReports/A_Report_of_the_Land_Commission_of_Inquiry_into_the_Illegal_or_Irregular_Allocation_of_Land_2004.pdf)

<sup>3</sup> Roadside Orders: Expensive burden that baffled many <https://www.pd.co.ke/news/national/roadside-orders-expensive-burden-that-baffled-many-23820/>

<sup>4</sup> East African Centre for Human Rights <https://eachrights.or.ke/>

<sup>5</sup> Shule Yangu Campaign Alliance <https://shuleyangu.co.ke/>

## 1.0 Background Information

On 13th November 2018, President Uhuru Kenyatta gave the following orders while addressing the congregation during the funeral service of **Archbishop John Njenga**<sup>6</sup>:

- a) That churches which sponsor schools should be allowed to run them.
- b) That sponsors be reinstated as the rightful owners of the land on which the schools they sponsor sit.<sup>7</sup>

In verbatim, the president's orders were as follows:

**H.E President Uhuru Kenyatta**

*“ There are a lot of schools sponsored and built by the church. The Ministry of Education, I’m saying this for the last time today, ensure that you restore that sponsorship, and secondly, you have one week to restore all church owned land and schools back to their rightful owners.”*

### Figure 1: President Kenyatta's Verbatim Orders

This position paper explores a number of critical issues related to sponsored schools in Kenya, against the backdrop of the president's remarks. In particular, it delves into the following four areas:

#### 1. Orders of the President on Sponsored Schools issued on 13th November 2018.

Here, the legality and applicability of the president's directive and its attendant implications were explored. This study sought to show how a public declaration by the president can have the force of law, only if the actions that take place thereafter are in accord with the constitution.

#### 2. Ownership and Management of Sponsored Schools in Kenya

A myriad of issues related to sponsored schools in Kenya are addressed including the following:

- The legal framework defining who a (school) sponsor is and the different types of sponsors who operate in Kenya.
- How sponsored schools operate, and how they are managed.
- Challenges encountered in the management of sponsored schools and the knock-on effects these challenges have on the right to education for children.
- The relationship that the various sponsors have with the sponsored institutions.
- Legal framework that exists around legal protection of sponsored schools;

<sup>6</sup> Bio-data of Archbishop John Njenga, emeritus <https://www.catholic-hierarchy.org/bishop/bnjenga.html>

<sup>7</sup> KENYA: Restore Ownership of Church Sponsored Schools, President Uhuru Orders <http://cisanewsafrika.com/kenya-restore-ownership-of-church-sponsored-schools-president-uhuru-orders/> (Accessed 4th July, 2021)

### 3. Registration Regime related to Sponsored Schools

The issues addressed under this theme were as follows:

- The effects of having the school's land title under the sponsor's name.
- The registration criteria and requirements for sponsored schools.
- Land titling aspects of sponsored schools and the risks involved including the long-term effects of having the title in the sponsor's name and schools losing title to sponsors.

### 4. Impact of Sponsored Schools on Discipline of Learners, and Access to Quality Education

The issues addressed under this theme were as follows:

- Connection between church ownership of public schools and levels of discipline and morality.
- Potential impact of sponsorship on access to quality education.
- The implications of sponsorship on pupils/students who do not profess the faith of the sponsor.
- An exploration of the risk of re-privatization of sponsored schools that exist and the effect of that on the right to basic quality education.

## 2.0 Orders of the President on Sponsored Schools issued on 13th November 2018

President Uhuru Kenyatta gave the two aforementioned orders on the said date.

Two weeks prior (on 1st November 2018), the government had gazetted the Multi-Agency Working Group on School Land Titling, through Gazette Notice No. 12311<sup>8</sup> to fast-track the titling of **public school land**.

Three years prior (January 2015), President Kenyatta had ordered the Ministry of Lands<sup>9</sup> to accelerate issuance of title deeds to all public schools. This was in the wake of the attempted land grab at Lang'ata Road Primary School<sup>10</sup>.

Five years later (November 2020), data by Shule Yangu Campaign Alliance showed that only 14,168 schools out of 32,354 schools had received a title deed, representing a modest 37%. <sup>11</sup> The picture above seeks to paint the intractable complexities and vagaries pervading Kenya's public policy sphere. That even in spite of the president's orders issued in public in the presence of high-ranking officials of the line ministry, implementation is usually a different ball game.

<sup>8</sup> Reference: [http://kenyalaw.org/kenya\\_gazette/gazette/volume/MTg2Ng--/Vol.CXX-No.145/](http://kenyalaw.org/kenya_gazette/gazette/volume/MTg2Ng--/Vol.CXX-No.145/)

<sup>9</sup> President Uhuru Kenyatta orders Lands Cabinet Secretary Charity Ngilu to issue titles to schools <https://www.standardmedia.co.ke/counties/article/2000148908/uhuru-orders-ngilu-to-issue-titles-to-schools>

<sup>10</sup> #OccupyPlayGround: police used teargas on our children, but for now we celebrate the win <https://www.theguardian.com/global-development/poverty-matters/2015/jan/20/occupyplayground-police-used-teargas-on-our-children-but-for-now-we-celebrate-the-win>

<sup>11</sup> Data shows 20,669 public schools lack title deeds <https://arena.co.ke/data-shows-20669-public-schools-lack-land-title-deeds/>

Reverting to analysis of the president's directive on sponsored schools, we find its primary focus in Articles 132 (3), (b) and (c) and 135 of the Constitution of Kenya. In the first instance, the functions of the president are cited as below:

Art. 132(3) states that the President shall –

- (a) Chair Cabinet meetings;
- (b) Direct and coordinate the functions of ministries and government departments; and
- (c) By a decision published in the Gazette, assign responsibility for the implementation and administration of any Act of Parliament to a Cabinet Secretary, to the extent not inconsistent with any Act of Parliament.

In this case, the president's directives are legal to the extent that they are being issued for execution by the line ministry, which is under his ambit. However, the directive on allowing sponsors to run schools is problematic because it is inconsistent with the established law at the time. This is in reference to Section 43 of the **Basic Education Act (2013)**, which recognizes only two categories of schools – public<sup>12</sup> and private<sup>13</sup> schools. The strict interpretation of this section means that the president's directive offended this provision, and therefore lacked the force of law.

A year earlier (30th May 2017), Hon. Chris Wamalwa<sup>14</sup> had filed a notice of motion in the National Assembly, seeking to amend <sup>15</sup> Sections 43 and 95 of the Basic Education Act.

**Table 1:**  
**Proposed amendments to the Basic Education Act (2013) Summary of Notice of Motion**

**Citation: Basic Education (Amendment) Bil, 2017**  
**First amendment: Section 43 (Categories of School)**  
**Second amendment: Section 95 (Regulations)**

<sup>12</sup> Public schools are those established, owned or operated by the Government and includes sponsored schools.

<sup>13</sup> Private schools are those established, owned or operated by private individuals, entrepreneurs and institutions.

<sup>14</sup> Bio-data of Hon. Chris Wamalwa <http://www.parliament.go.ke/the-national-assembly/hon-wakhungu-chrisantus-wamalwa>

<sup>15</sup> Notice of Motion to amend the Basic Education Act (2013) [http://kenyalaw.org/kl/fileadmin/pdfdownloads/bills/2017/BasicEducationAmendment\\_Bill\\_2017.pdf](http://kenyalaw.org/kl/fileadmin/pdfdownloads/bills/2017/BasicEducationAmendment_Bill_2017.pdf)



*Community liaisons Eugene Okello, Presila Esther, and Noah Adipo listen attentively during the Community Liaison Training on Human Rights as enshrined in the constitution.*

successful, these amendments would seal the policy lacuna that exists in the current law, thus paving way for restoration of the authority of sponsors to run schools, in line with the president's directive.

The second section of the law under which the president's directive should be weighed is Article 135 of the Constitution (**Decisions of the President**) which reads as follows:

‘A decision of the President in the performance of any function of the President under this Constitution shall be in writing and shall bear the seal and signature of the President.’

This means that the president **must** put in writing and sign all major announcements and have them put under seal of office. This is a particularly consequential provision of the constitution, as it sought to address a number of issues:

- (a) The reckless history of previous presidents who issued roadside statements that did not have any locus in established law
- (b) Enhancement of accountability on the person of the president, by ensuring that every public pronouncement is issued officially through the statutory policy pathways
- (c) Curbing the eccentric nature of politics in Kenya where what is said and what is done are different, mostly resulting from politicians who make populist statements, in a bid to play to the gallery.

Upon issuance of the directive on 13th November 2018, the president should have instructed his office<sup>16</sup> to give a written communication to the Ministry of Education, and Lands, for execution. So far, there is no evidence that this was done.

Therefore, on this count, the directive lacks the force of law. The genius in the creation of these pathways of accountability in the constitution was to not only systemize public policy making and execution, but also strengthen the institutions of restraint on the part of the powers of the president.

As such, the Ministry of Education would not be faulted if their reason for inaction is that they did not receive communication from the Executive Office of the President.

The counterview is that even if the Ministry of Education went ahead and tried to implement the president's directive in some shape or form, the outcome will be vulnerable to successful litigation by any Kenyan who would feel aggrieved by the decision.

The role of institutions of restraint is that they create a healthy tension between the apex power of the presidency and the constitutional mandate of state institutions which can and should constrain the powers of the presidency in execution of their mandate.

To reiterate, the president is at liberty to make any policy or political declaration in public, as long as it meets the following minimum conditions:

- a) Does not offend any section of the constitution
- b) Is consistent with existing laws (Acts of parliament)
- c) Should be put in writing, under the seal of his office.

The role of institutions in limiting the whimsical powers of state actors is well articulated by Dahlström and Wängnerud (2015) who posit that elites always default to concentrating political power to the centre. Therefore, building of strong state institutions is a critical step towards curtailment of the destructive behaviour of the political elites and improvement of the quality of governance. Fukuyama (2014) also flags weak institutions as a fault-line that results in state decay.

### **3.0 Ownership and Management of Sponsored Schools in Kenya**

Sponsored schools have had a mixed history, largely influenced by the macro-level political trends in the country. This section unpacks two aspects – ownership and management – of sponsored schools in Kenya.

#### **Ownership of Sponsored Schools**

The Basic Education Act (2013) defines a sponsor as a person or institution which makes a significant contribution and impact on the academic, financial, infrastructural and spiritual development of an institution of basic education.

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<sup>16</sup> Dr. Joseph Kinyua (EGH) <https://cabinetoffice.go.ke/ps-to-the-presidency/>

The import of this definition is that thematically, sponsors can be of different shades (academic, financial, infrastructural and/or spiritual), in terms of their contribution to the institution. However, there can be a single sponsor who transcends different themes i.e. a church which sponsors an institution financially, but also has significant influence in the spiritual rituals and dispositions of the learners in that school.

It is the level of sponsorship that dictates the quest for ownership on the part of the benefactor. This ownership seeks to go beyond playing a role in the day-to-day management of the institution to controlling the finances and the operational policies of the school. However, there are some sponsors who are only interested in enhancing the quality of teaching and learning in the school, without any other vested interests in ownership of the institution.

The word ‘sponsor’ within the context of education in Kenya has presumed the role of religion in education, especially the church. This is because of the latter’s outsized role in shaping education in Kenya since the pre-colonial era. Yet, available data shows that there are different sponsors who actively support education in Kenya.

The table below outlines different types of sponsors involved in supporting basic education in Kenya.

**Table 2: Sponsors involved in supporting basic education in Kenya**

| Type of Sponsor                                                            | Examples                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Religious organizations</b>                                             | <ul style="list-style-type: none"> <li>▪ Catholic church</li> <li>▪ Anglican church</li> <li>▪ Methodist church</li> <li>▪ Presbyterian church</li> <li>▪ Friends/Quakers church</li> <li>▪ African Inland church<sup>17</sup></li> <li>▪ Salvation Army church</li> <li>▪ Deliverance church</li> <li>▪ Baptist church</li> <li>▪ Muslim Charity</li> <li>▪ Full Gospel Churches of Kenya, etc.</li> </ul> |
| <b>Corporate bodies (as part of their corporate social responsibility)</b> | <ul style="list-style-type: none"> <li>▪ Safaricom Foundation</li> <li>▪ Equity Foundation</li> <li>▪ KCB Foundation</li> <li>▪ Cooperative Bank Foundation</li> <li>▪ Aga Khan Foundation</li> <li>▪ Ummah Foundation</li> <li>▪ Gulf African Bank Foundation</li> <li>▪ First Community Bank Foundation</li> </ul>                                                                                        |
| <b>Foreign Embassies</b>                                                   | ***                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Private Entrepreneurs and Philanthropists</b>                           | ***                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Local Communities</b>                                                   | Various                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Foreign-based foundations</b>                                           | ***                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Alumni organizations</b>                                                | Various                                                                                                                                                                                                                                                                                                                                                                                                     |

\*\*\* Data unavailable from the Ministry of Education, Science and Technology

<sup>17</sup> Available data shows that the African Inland Church sponsors a total of 3,500 primary and secondary schools in Kenya, potentially the sponsor with the highest number of schools. This is according to a discussion between Elisabeth Stoddard and John Kitale (National Education Secretary for the African Inland Church, Kenya). Date of interview: April 9, 2015

Data elucidating the list of sponsors and more ideally, the nature and scope of the contribution(s) they are making to all public schools is lacking at the ministry. This is important information that should be kept and updated by the department which deals with partnerships at the ministry.

The reduction (even near-annulment) of the role of sponsors (especially the church) in ownership of schools (through the Basic Education Act 2013), has to be seen through the broader spectrum of the 2010 constitution, which rejigged the relationship between state and church, by the declaration that Kenya is a secular state<sup>18</sup>. In spite of the fact that separate sections recognize the freedom of conscience, religion, thought, belief, opinion and assembly,<sup>19</sup> The effect of secularizing the state meant that there can be no preferential treatment to one religion over the other. Consequently, the enactment of the education act in 2013 essentially views church-based actors in the education sector through those lenses.

Ownership of schools by sponsors is rooted in the pre-colonial set-up of the country. Bogonko (1992) notes that the first missionary school to be set up in Kenya was at Rabai, near Mombasa by the Church Missionary Society, in 1844. This was followed by the Holy Ghost Fathers in Bura in 1891 and the Africa Inland Mission missionaries in 1895, ahead of the British East Africa Company's foray into Kenya.

Sheffield (1974) posits that the year 1920 was a critical turning point with regard to the missionaries' investment and management of education in Kenya. There was a deliberate increment in their commitment to education not just to cater to the demands of their new converts but also as a measure to limit growing attempts by the colonial administration to control education.

At independence, the nationalization of schools to fall under exclusive control of the government meant that the role of the missionary-owned schools during the colonial period needed to be redefined. The Education Act (1968) shifted school ownership and management from the church organizations to local authorities, with the sponsor's responsibility reduced to playing defined roles in management. The evolution of this sponsorship role was anchored on two key aspects:

- One, the fact that in some instances, local administrators of missionary societies that owned these schools did not have the financial muscle to meet the financial demands. Therefore ceding control to the government was a logical step.
- Two, in the late 1980s, the introduction of Structural Adjustment Programs (SAPs) by the World Bank and International Monetary Fund (IMF) meant a recession in the government's role in subsidizing public services like education, due to the government's economic meltdown. The church's role as sponsors again rebounded in terms of role and significance. Also, by the 1990s, local church administrations had grown in their capacities to fundraise from overseas and support local ventures and initiatives.

Muhoho (1970), Sifuna (1990), Mabeya, Ndiku, and Njino (2010) and many other scholars have explored the influence that the church has had on ownership of schools. The consensual position is that this role has been significant, and has extended beyond ownership to shaping management and

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<sup>18</sup> Article 8 – There shall be no state religion

<https://www.klrc.go.ke/index.php/constitution-of-kenya/108-chapter-two-the-republic/174-8-state-and-religion>

<sup>19</sup> Article 32 and 36

even curriculum content. However, the role has been swinging back and forth like a pendulum, mostly dictated by the relationship between church and state.

The current ownership of public schools is largely in favour of the government, with the scope of churches which sponsor these schools reduced to that of playing a role in management through the boards. In 2004, the amendments to the Education Act increased the role of sponsors to that of appointing the chair of school board of management and nominating up to 4 members of the board. In many schools, the sponsor also had leverage to nominate the head-teacher.

The re-introduction of free primary education in 2003 significantly increased the role of the government in the ‘ownership’ of sponsored public schools, since it elbowed out church-based sponsors’ role of financing education in Kenya.

The Basic Education Act (2013) forced churches to choose a side – whether to remain as supporting cast in public schools, or open private schools where they shall be the sole proprietors – with 100% ownership and control of management of schools.

Currently, the MOEST has exclusive ownership of all public schools, seen through their unmatched role in financing, deployment of management, training, employment and remuneration of teachers, determination of curriculum content taught in the schools, administration of examinations.

**Section 27** of the Basic Education Act (2013) outlines the following as the roles of the Sponsor:

- (a) to participate and make recommendations of review of syllabus, curriculum, books and other teaching aids;
- (b) representation in the School Management Committees and Board of Management;
- (c) to provide supervisory and advisory services in matters regarding spiritual development in schools including the appointment of chaplains at their own expense;
- (d) maintenance of spiritual development while safeguarding the denomination or religious adherence of others;
- (e) to offer financial and infrastructural support

The above is a clear demonstration of the diminished clout of sponsors who are now seen as largely actors meant to play supporting roles in management, spiritual guidance, and financial contribution amongst others. Ownership remains the exclusive preserve of the government.

## Management of Sponsored Schools

Drawing from the foregoing section, management of these sponsored schools is a consequential outcome of ownership of the same. A stakeholder cannot have a greater management role if his/her scope of ownership is already limited.

The role of sponsors in management of public schools has been in recession since independence.

The question of the role of ‘sponsor’ in school management was first addressed by the Ominde Report <sup>20</sup> (GoK 1965). The three key highlights were as follows:

- The responsibility of appointing the sponsor’s representative to the school committee/board should be that of the higher rungs of leadership and not the local church leadership.

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<sup>20</sup> Report of the National Committee on Educational Objectives and Policy (Ominde Report) <http://kenyalaw.org/kl/fileadmin/CommissionReports/Report-of-the-National-Committee-on-Educational-Objectives-1975-to-1976.pdf>

- The sponsor should not have any express role in the senior management of the school but should be meaningfully included in the management decisions.
- The sponsor ought to be allowed to contribute to the spiritual guidance of the school and the curriculum content of religious education.



*Form four students at Bishop Okullu Magare Girls Secondary School in Homabay County, Rangwe sub-county during a class session.*

The Education Act (1968) is when the first usage of the term ‘sponsor’ occurs within the policy context of the education sector. Mabeya, Ndiku and Njino (2010) note that the usage was meant to define the new role and responsibility of non-state actors, in the new post-independence political dispensation, after nationalization of schools that were formerly run by missionaries. In Section 8(1) of that Act, sponsors were designees of the former church organization that was running the school, which was now under the management of the local authority. In this state of play, sponsors did not have major decision making roles in management, but were to be consulted by the local authority and Teachers’ Service Commission (TSC) when decisions about posting of teachers to the school were being made.<sup>21</sup>

Management of sponsored schools (which were referred to as transferred schools at independence) were under school committees (for primary schools) appointed by the local authority and board of governors (for non-primary schools) appointed by the Minister for Education. Section 19 also gave the minister of education authority to develop regulations governing the conduct of schools, including infrastructure set up, staffing thresholds, curriculum development, knowledge management, development of health and safety measures, and prescription of different kinds of schools, amongst others. Three notable regulations that had a bearing on sponsors are as follows:

<sup>21</sup> Vide Section 8(3)(a) of the Education Act (1968)  
<http://kenyalaw.org/kl/fileadmin/pdfdownloads/Acts/EducationActCap211.pdf>

- The Education (Education Standards) Regulation of 1968, which gave a sponsor leverage to prepare or recommend for approval by the Minister for education, teaching and learning materials for use in religious education in the sponsored school
- The Education (Board of Governors) Order 1969, which expanded the management role of sponsors as articulated in Section 11 (Education Act, 1968), by giving a sponsor power to nominate/fill four slots of membership on a school board of governors
- The Education (School Committee) Regulations 1969, which permitted the sponsor to nominate three members to primary school management committee

Decades earlier, smack in the middle of colonialism, the discordant objective of investment in education between missionaries and the colonial administration was already evident. On the one hand, missionaries were driven by a desire to set-up and use schools as centres of evangelism and training of their new converts. On the other hand, the colonial administration saw schools as a key avenue through which to implement their controversial racial segregation policy, which created schools (and courses) for different groups i.e. Europeans, Asians and Africans. So in the colonial era, management of schools depended on who was financing the operations. This was either the colonial administration or the missionary societies.

The Kamunge Report (Republic of Kenya, 1988), which addressed issues of cost-sharing in the education sector, encouraged sponsors to increase their financial support towards development of schools. No significant counter-highlights were made to simultaneously call for additional management responsibilities on the part of the sponsors. The report by the Koech Commission (GoK, 1999) <sup>22</sup>, grouped sponsors into three categories, as shown in the figure below.

### Types of Sponsors as outlined in the Koech Report, 1999.

**Primary Sponsors:** Those who originally built schools, on their own land, using their own resources, and developed the infrastructure in those schools until the government took over ownership at independence.

**Secondary Sponsors:** Those who were invited by local communities to further the development of schools which had been initially set up by these communities .

**Tertiary Sponsors:** Those who came in after learning institutions had been established but have not made any notable contribution to the development of the schools. Their presence is largely symbolic.

### Figure 2: Types of Sponsors as outlined in Koech (1999) Report

This report also highlighted the discordance between the government and sponsors in management of schools, and called for enhanced roles for sponsors, especially in financial support and spiritual guidance, amongst other recommendations. Ultimately, the report's recommendations were not implemented by the government<sup>23</sup> in toto.

<sup>22</sup> The Commission of Inquiry into the Education System of Kenya was appointed by President Daniel Moi on 15th May, 1998. It presented its findings through a report titled 'Totally Integrated Quality Education and Training (TIQET)', in 1999.

The report is available here <https://www.davykoech.com/wp-content/uploads/2019/04/Koech-TIQET-Report-1999.pdf>

<sup>23</sup> Kenya: Moi rejects Koech Education Report <https://allafrica.com/stories/200004160025.html>

In 2004, the Ministry of Education vacated the 1968 Order<sup>24</sup> that gave sponsors leeway to recommend school board chairpersons for ratification by the minister, teaching and learning materials for religious education, and scaled down membership of the sponsor's representatives from four to three.

Downsizing of the role of sponsors in the management of sponsored schools has to also be seen in how creation of new institutions within the 2010 constitution addressed some grey areas like training, deployment and remuneration of teachers. An example here is the exaltation of the Teachers Service Commission, into a constitutional commission<sup>25</sup>. The powers of the TSC, one of them being deployment of teachers, are now protected and not subject to whimsical legislative changes through the Act of parliament. Therefore, varying that constitutional mandate to accommodate sponsors by allowing them to decide who the head-teacher of a school becomes is counteractive to constitutional order.

By and large, the Basic Education Act (2013), draws the fundamental principles of governance from the 2010 constitution. These include inclusion and non-discrimination. Although sponsors are recognized as critical stakeholders, their role in management is held in check. The Act grants faith-based sponsors three slots on the school board. Secondly, the County Education Boards are required to consult the sponsor in appointment of the school board chairperson, in faith-sponsored schools. Thirdly, sponsors who are consulted ought only to be those who are making significant contributions to the school.<sup>26</sup>

To reiterate, the categorization of schools as either public or private limits the wriggle-room of sponsors. The options for them to have greater clout include the following:

1. Lobby parliamentarians to pass Hon. Chris Wamalwa's amendment to the Basic Education Act (2013) that introduces a third category of Public-Private Schools.
2. Negotiate with the country's leadership on the possibility of resuming full ownership of the schools where the sponsors were the founders, then convert them into private schools. This is the import of the president's directive, which as we saw in the first section of this paper, is untenable based on the current legal framework. Certainly, even if this was to happen, it would have huge ramifications, including the potential to create inequalities in access and participation in education for children whose parents might be out-priced by the school fee costs. The other loss will be in public funding for infrastructure development, and deployment and remuneration of teachers.
3. A more practical approach is to lobby the minister for education to issue guidelines which expand the role of sponsors in the current set-up, as a stop-gap measure. Section 54 (1 & 2) of the Basic Education Act (2013) has provisions that empower the minister to make decisions that enhance the participation of all stakeholders in governance and management of schools.

Yet, a long-view analysis shows consistent policy actions on the part of the government to push aside faith-based sponsors whose role in ownership and management of schools is curtailed.

As a result, many sponsored schools have to operate under a head-teacher who is now less accountable to the sponsor and more accountable to the ministry of education and the TSC.

<sup>24</sup> Republic of Kenya, 2004, Regulation No. 5, Ministry of Education

<sup>25</sup> Article 237 of the Constitution of Kenya

<https://www.klrc.go.ke/index.php/constitution-of-kenya/176-chapter-thirteen-the-public-service/part-3-teachers-service-commission/406-237-teachers-service-commission>

<sup>26</sup> Section 56 (1d,5&7)

## 4.0 Land Registration Regime related to Sponsored Schools

This section explores land ownership by sponsored schools, from the current legal provisions and the potential outcomes if the ownership documents are in the name of the sponsor.

The legal framework covering land ownership in Kenya is founded on the following provisions: Constitution of Kenya, Land Act (2012), National Land Commission Act (2012), Land Registration Act (2012), Land Adjudication Act (2012), Survey Act (2012) and Community Land Act (2016).



*Students from Senator Otieno Kajwang High School in Homa Bay County participate during an education community baraza led by EACHRights' Education Support Programme (ESP) at St. Stephen's Kirindo Mixed Secondary School field in Mbita County.*

There are three types of land ownership regimes according to Article 61 of the constitution. These are **public land, private land and community land**.

Public schools will sit on public land. However, because of the history of faith-based sponsors in supporting education in Kenya since pre-independence days, there are instances where public schools seat on land whose title is in the name of the sponsor.

At independence, there was transfer of schools under faith-based sponsors to the government, through a process of nationalization. The Ominde Committee Report (1968) foregrounded this, and some of the recommendations therein were operationalized through the Education Act (1968).

Whereas the role of sponsors was addressed from different dimensions by the Ominde Committee Report, the question of land ownership was not. This was the case also with the Education Act (1968), which gave an outline of the management of the education sector, including roles and responsibilities of sponsors, but failed to deal with succession management of land on which schools (now public) sat.

Sections 7 and 8 of the Education Act (1968) addressed the transfer of schools from faith-based sponsors to local authorities (mostly District Education Boards). However, this covered operational management and not land ownership. There was no deed of transfer that detailed the nature of agreement at the point of transfer.

But because the government took ownership and management responsibilities for these schools since independence, by way of infrastructure investment, provision of teaching and learning materials, deployment and remuneration of teachers, provision of quality assurance services, and employment of the head-teachers, the clout of sponsors was significantly (if not irreversibly) reduced.

In the current set-up, all public schools should have land ownership documentation, under the trusteeship of the County Government<sup>27</sup> and administered by the National Land Commission<sup>28</sup>, on behalf of the Kenyan people.

Land ownership documentation can be in different forms depending on the location of the school (urban/rural), whether survey of the land has happened or not, stage at which the process of acquisition of land ownership has reached etc. The documentation can be Lease Certificate, Letter of Allotment or Title Deed.

With reference to the different types of land ownership, it is noteworthy that private land and community land can be converted to public land but the reverse has no locus in law. For instance, in the 1960 and 1970s, there were many *'harambee schools'*<sup>29</sup> set up by local communities through provision of community land, employment/payment of teachers, in a bid to provide access to educational opportunities and bridge the existing opportunities. Over time, when the government started channeling its support to these schools, they were converted into public schools and the government took ownership of the land.

A piece of land can become public by way of sale, reversion or surrender.<sup>30</sup>

## **Implications of leaving school titles in the name of the sponsors**

The position of sponsors is that by the government retaining control of sponsored schools, they are denied the constitutional right to ownership of private property. Whereas this is true, it fails to take into account other overriding facts on the history of these schools, which has been discussed in the previous sections. Further, the right to private ownership of property is not absolute. There are provisions where the state can vary that right, especially if it is in the interest of the public (Article 66 (1)).

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<sup>27</sup> Article 62(2) of the constitution <https://www.klrc.go.ke/index.php/constitution-of-kenya/117-chapter-five-land-and-environment/part-1-land/229-62-public-land>

<sup>28</sup> Article 67(2)(a) <https://www.klrc.go.ke/index.php/constitution-of-kenya/117-chapter-five-land-and-environment/part-1-land/234-67-national-land-commission>

<sup>29</sup> Information drawn from Dr. Kilemi Mwiria's doctoral dissertation titled **'The Kenyan Harambee School Movement'** published by Stanford University (1985)

<sup>30</sup> Article 62(1)(c) of the constitution

Additionally, there is a failure on the part of the sponsors to recognize that these schools have benefitted significantly, over the past 5 decades, from investments of public money, through infrastructural developments, training, employment, deployment and remuneration of teachers, and supply of teaching and learning materials amongst others. All these investments were done on the understanding that these were public institutions, by dint of government ownership of the same.

But the current legal framework which defines schools only as **public or private**, and land only as **public, private or community**, means that sponsors have to take a more moderate approach in negotiating for a stake in ownership and management of these schools with the government.



*An all-girls team from Mukuru Kwa Njenga urban informal settlement during the Ruben FM annual football tournament at the Mukuru Kwa Njenga grounds.*

A lesson can be drawn from owners of Low-Cost Private Schools (LCPS), especially in urban areas. On realizing their inability to meet the strict legal provisions of registering and operating as private schools (as defined in the Basic Education Act, 2013), they successfully lobbied for development of a separate framework called Alternative Provision of Basic Education and Training (APBET) Registration Guidelines.<sup>31</sup> This framework addresses, to a certain extent, the legal stature of LCPS, in the broader sense of non-formal education.

<sup>31</sup> APBET Registration Guidelines <https://www.education.go.ke/index.php/2-education/68-downloads2#>

Although these LCPS have faced a raft of challenges <sup>32</sup>, they already have a framework of operation which caters for their existential needs and operational basis.

Noteworthy, the current legal regime on registration of sponsored schools favours the government. Sponsors will require lobbying for a change in law, especially in the Basic Education Act (2013), to expand their scope of ownership and management. Yet, even with this, ownership of land upon which sponsored schools sit will remain thorny, because the categorizations of land in the constitution do not contemplate co-ownership i.e. joint ownership between a public entity (government) and private one (sponsor).

For schools whose title deeds remain in the name of the sponsors, the following are likely scenarios:

- If the sponsor does not have a clear development plan for the land, with exclusive allocation of the school section for that utility function, there is a risk of change of use in the future, thus shifting from educational activities/objectives.
- Sponsor institutions can use the titles as collateral to secure credit facilities. In the event of a default, the school might be auctioned or taken over by the lending institution.
- If the stand-off between the government and the sponsors on ownership and management persists, the latter in whose name the school's title is, will possibly convert the institution into a private school. This will come with entry barriers to learners and affect access to education
- Constraints in land spaces for co-curricular and recreational activities negatively affect the quality of learning. There is a strong correlation between physical activities and cognitive development, which has an impact on academic performance. <sup>33</sup>

The key point of consideration is to weigh between the right to ownership of private property on the part of the sponsors, and the right to education for the Kenyan children, and the government as the duty bearer in this case. Predictably, the greater good is to explore how the government can acquire the land on which the sponsored schools sit, through a consensual and legal compensation mechanism, so that there is assurance of seamless provision of education to learners.

An acknowledgment has to be made though, that sponsored schools have played a pivotal role in expanding access to education since the colonial era. The combination of education opportunities both as a vocation and profession has ensured an extraordinary commitment to learners at different levels.

### **Implications of Sponsored Schools on Access to, Quality of and Participation in Education**

As noted in the preceding section, access to educational opportunities in sponsored schools had limitations during the colonial days and the early years after independence. The religious institution sponsoring the school had a lot of leeway in deciding the admission criteria, which included learners who professed the faith of the sponsoring religious institution. This meant that many students were deprived of the opportunity to access education. The situation was exacerbated by the limited number of government schools which were secular and easy to access. Over time though, the rapid expansion of schools has made access and participation easier.

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<sup>32</sup> Confusion as Education Ministry declines to register informal schools <https://www.standardmedia.co.ke/education/article/2001279197/confusion-as-ministry-declines-to-register-53-informal-schools>

<sup>33</sup> Extra-curricular activities in school can enhance cognitive and motor skills <https://indianexpress.com/article/parenting/learning/extra-curricular-activities-in-school-enhance-cognitive-motor-skills-5696637/>

Currently, Kenya has 32,354 public primary schools spread across the 47 counties. None of the public primary schools use the religious profession of a prospective student as a criterion for admission.

Litigation of basic rights in Kenyan courts has also grown rather robustly. Therefore, religion or the lack of it, cannot be used as a premise to deny a student admission. The case in 2019 where a student was readmitted after a school expelled her for donning dreadlocks and ascribing to the Rastafarian<sup>34</sup> Society is illustrative in this sense. Although it is not a sponsored school, it shows human **citizen agency** remains as one of the pillars of securing fundamental right to education in the face of any threat to it.

The insistence on basic rights by the courts, as the anchor of how citizens are treated by state and non-state institutions is progress in securing the right to education for all children.

On quality of education, the current model of the government's investment in education, which takes a per capita approach, means that all public schools receive a capitation grant based on the number of learners they have admitted. This is irrespective of whether the school is sponsored by a religious institution or not. Additionally, county governments and constituencies through the National Government Constituency Development Fund (NG-CDF) are making significant investments in all public schools, which is enhancing quality education across the spectrum.

## 5.0 Impact of Sponsored Schools on Discipline, Morality and Performance

In this section, the paper will explore the trifecta relationship between religious teachings, discipline and academic performance.

The use of religion as a source of moral rectitude in Kenyan schools pre-dates the country's independence. Various commissions and committees underscored the utmost importance of teaching Christian religious education in schools, as a means of fostering values in Kenyans, and developing a wholesome person. These include Fraser Education Commission (1909), Beecher Education Commission (1949), and Binns Education Committee (1949).

At independence, the Ominde Committee (1965) reiterated the role of religious education not just as a means of inculcating good values, but development of the kind of citizen who shall meaningfully engage in nation-building going forward.

The Gachathi Committee (1976) took a position unsupportive of religious education. Its argument linked this type of education to perceptions amongst Africans that it was used by colonialists as a pacification tool. The reference was specific to Christian religious education. Secondly, it was noted that the teaching of this subject had not accomplished the objective of inculcating national moral consciousness. Further, the committee recommended that a common course be introduced to teach moral education for all students, irrespective of their religious leanings. Mugambi and Nasimiyu (2003) noted that this proposal was opposed by both Catholic and Protestant subject panels at the Kenya Institute of Education (KIE) then.

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<sup>34</sup> JWM vs. Board of Management of O High School and Others (Petition 10 of 2019)  
<http://kenyalaw.org/caselaw/cases/view/180467/>

Burgman (1990) observes that religious education (Christian, Hindu and Islamic) have consistently been taught in Kenyan schools as compulsory subjects at the basic level.

The Koech Commission (1999) also emphasized the need to continue offering both religious education and social ethics and education (SEE) as a core part of the Basic Education Cycle and Teacher Training Curricula. Itolondo (2012) observes that many countries continue to wrestle with the question of whether moral education can only be acquired through religious education.

Schools with faith-based sponsors tend to have a stricter code of conduct that is enforced consistently and cohesively, based on the value-system of the sponsoring institution. For instance, children studying in catholic-run schools are required to attend mass every so often, according to the school timetable, and uphold Catholic ideals and liturgical practices. In primary schools, especially boarding school settings, the options are limited. However, in secondary schools, many schools are flexible to allow students from different denominational backgrounds other than the one of the school's sponsors, to practice their own religious norms in a separate setting.

At independence, students were admitted to schools based on their faith. For instance, a student who was a catholic could not find admission into a Protestant-run school. This had huge implications on equity, fairness and respect for diversity and liberty of religious consciousness. However, the right to choose one's religious leanings and not lose out on educational opportunities has grown alongside the broader expansion of the democratic space in the country.

**Does teaching of religious education contribute to better discipline amongst students and therefore, better academic performance?**

Many authors, scholars and commentators, including Mueke (2020), Akaranga and Simiyu (2016), Kimotho (2007) and Cheruiyot (2004), have made a strong case linking the teaching of religious education to discipline amongst students, which provides a foundation for academic excellence.

But in spite of this position, indiscipline has become a prominent feature especially in secondary schools across many decades in Kenya. Some cases have turned into violent acts that led to loss of lives and property. The Parliamentary Departmental Committee on Education and Research report (2018)<sup>35</sup> On inquiry into the wave of students' unrest in secondary schools in Kenya noted that some of the socio-economic factors included poor moral values, drugs and substance abuse, lack of guidance and counselling, strict enforcement of school rules, and existence of different ideologies in faith which are in conflict with the school administration's set-up.

The flare-ups of violence in secondary schools have not excluded sponsored schools. Previous reports like the Claire Omollo Committee (2016), Wangai Taskforce (2001), Kirima Commission (1994) highlighted more or less the same reasons for student unrest in schools.

Moral decadence amongst secondary school students remains a concern but the bigger question is why teaching of religious education and enforcement of code of conduct by different sponsored schools haven't stemmed this problem. Itolondo (2012) argues that teachers of Christian Religious Education are demotivated because of being looked down upon by the government, compared to how their colleagues who teach other subjects are treated. Achola and Pillai (2000) concluded

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<sup>35</sup> Departmental Committee on Education and Research report on Students' Unrest in Secondary Schools  
[http://www.parliament.go.ke/sites/default/files/2019-07/REPORT%20OF%20THE%20DEPARTMENTAL%20COMMITTEE%20ON%20EDUCATION%20ON%20STUDENT%20UNREST\\_compressed.pdf](http://www.parliament.go.ke/sites/default/files/2019-07/REPORT%20OF%20THE%20DEPARTMENTAL%20COMMITTEE%20ON%20EDUCATION%20ON%20STUDENT%20UNREST_compressed.pdf)

that many students study religious education not because of the moral values therein but to pass in the examinations. Nyamosi (2019) highlights the manifest difference between moral education, which is offered in many schools through the curriculum and enforcement of religious codes especially in sponsored schools, and moral reasoning which is lacking amongst many students.

Besides issues of morality, there is no evidence that schools which perform well are always sponsored ones, and that there is a correlation between the said sponsorship and academic excellence. The factors responsible for good academic performance are varied, and go beyond the role of sponsors and their influence on moral issues.

As such, it is fair to conclude that sponsored schools impart a significant degree of values, through their coherent enforcement of certain codes of conduct, but there is no evidence that the enforcement of these values has been successful in creation of outstanding discipline amongst students, relative to other schools which do not have a default religious leaning. Further, there is no evidence that sponsored schools perform better than non-sponsored schools in national examinations.

## 6.0 Conclusions and Recommendations

**This paper has addressed various issues including:**

1. The legal locus of the president's directive on ownership and management of sponsored schools in Kenya and established that all public directives by the president ought to be in writing, under the seal of his office, for them to have force of law. Even if this was the case, the directive ought to be consistent with the constitution, and existing laws, including Acts of Parliament. As such, the president's directive was not legal since it contradicts provisions in the Basic Education Act (2013) on ownership of public schools.
2. The ownership and management of sponsored schools, by their respective sponsors in Kenya has been on a steady decline since independence. This issue has to be seen through the lens of interminable tension between church and state, since the pre-independence days. Clearly, there has been a deliberate and consistent effort by successive governments, to scale down the clout of sponsors and limit them to spiritual guidance and counselling, besides making financial contributions to the school. The role of sponsors in school management committees and boards has been whittled down and their oversight on head-teachers is reduced. The 2010 constitution cites Kenya as a secular state, further curtailing the encroachment of religion on the state. Creation of constitutional commissions like the Teachers Service Commission (TSC) further strengthened the teacher management regime and eliminated the influence sponsors used to have in appointment of head-teachers to their schools. This has also had the effect of repurposing the accountability framework at the school level, where previously, head-teachers had to kowtow to the dictates of the sponsor-institution.
3. The ownership of the land upon which sponsored schools sit – The categorisation of land only as public, private or community means that there is no provision of co-ownership between the government and the sponsors. A government school cannot operate on private land. At some point, a decision must be made to shift the school land to the government and title it appropriately, or for the sponsors to convert these schools into private enterprises. Either way, the overarching principle should be to safeguard the right to education by the Kenyan children.

As such, the thinking should tilt towards government acquisition of these lands and necessary compensation to be done to the sponsors, to settle ownership once and for all. Management can be shared between the government and the sponsor institutions but ownership should be the exclusive preserve of the government.

4. The trifecta between faith-based education, discipline amongst students and academic excellence in sponsored schools. Here, sponsored schools continue to be at the forefront of enforcing a stricter version of religious-driven values amongst students. While there is greater compliance in primary schools, the picture in secondary schools has been different, with flare-ups of student unrest across the decades, some leading to violent outcomes including destruction of property and loss of lives. In all these, we see sponsored schools playing a leading role in imparting values but there is no evidence that there exists a clear correlation between sponsored schools having higher discipline on the one hand and posting excellent results in academia on the other hand. Ultimately, many factors account for discipline (including parental upbringing) and academic performance (including quality of teaching and instruction).
5. On the question of access to quality education, sponsor institutions used to run some of the most prestigious schools during the colonial period and after independence. However, increased investments by the government in school infrastructure especially after 2003, has broadened the achievement of equity to the point that faith-based sponsored schools no longer have a marked advantage in quality education over the non-sponsored ones.

Drawing from the foregoing, there are a number of action points that need to be taken by different actors, going forward, to systematize operations of sponsored schools in Kenya. These proposals are contained in an Advocacy Plan, attached as an appendix at Annex 1.

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## Annexures

### Annex 1: Advocacy Plan on Issues Related to Sponsored Schools in Kenya

| Agenda Item                                                                                                                                                                   | Categorization<br><i>i.e. Policy, Legal,<br/>or Institutional</i> | Duty Bearer                                           | Approach                                                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------|-------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Amendments to the Basic Education Act (2013)                                                                                                                                  | Policy, Legal                                                     | National Assembly Committee on Education and Research | Presentation of petition seeking for re-tabling of Hon. Chris Wamalwa's proposed amendments to the Basic Education Act (2013) establishing Public-Private Schools as a 3rd category                                                                                                                                          |
| Sensitization of BOMs and SMCs on their role in protection of the interests of the schools they head                                                                          | Policy, Institutional                                             | EACHRights + Shule Yangu Alliance Campaign            | <ul style="list-style-type: none"> <li>• Setting up sensitization workshops</li> <li>• Development and distribution of IEC materials</li> </ul>                                                                                                                                                                              |
| Development of an Education Sponsorship Policy to address the Public-Private Partnership interaction between sponsors and the ministry in ownership and management of schools | Policy                                                            | MOEST                                                 | <ul style="list-style-type: none"> <li>• Development of a policy brief on the subject.</li> <li>• Presentation of petition to the Cabinet Secretary and lobbying for implementation</li> </ul>                                                                                                                               |
| Public support and awareness on risk of land ownership by schools                                                                                                             | Policy, Institutional                                             | EACHRights + Shule Yangu Alliance Campaign            | <ul style="list-style-type: none"> <li>• Development of a public campaign strategy that covers both traditional media and new (social) media</li> <li>• Identification of clear outcomes of the public campaign in terms of outputs</li> <li>• Engagement of PR experts in execution of public awareness campaign</li> </ul> |
| Fast-tracking titling of public schools whose land is contested or lacking clarity on ownership                                                                               | Policy, Institutional                                             | National Land Commission, MOEST, Ministry of Lands    | Continued lobbying for efficient outcomes by the inter-agency team                                                                                                                                                                                                                                                           |
| Monitoring and evaluation of all the agreed-upon advocacy issues                                                                                                              | Institutional                                                     | EACHRights                                            | Creation of a monitoring and evaluation plan to track implementation of all the agreed-upon advocacy issues                                                                                                                                                                                                                  |



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